HEADNOTE

> *"1. An appeal against an order denying the request to reject an action as manifestly bound to fail according to R.361 RoP is admissible under the requirements of R.220.2 and R.220.3 RoP.*
> *2. Such order is a case management order. As such it can only be the subject-matter of an appeal if it has been issued by a panel."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Action for revocation

PATENT
EP 2 671 173
METHOD AND MEANS FOR BROWSING BY WALKING

KEYWORDS
case management · admissibility · procedural appeal · panel decision · manifest failure

Rule 361 Action manifestly bound to fail

SUMMARY
The Court of Appeal Luxembourg ruled on an action for revocation. The patent at issue relates to a method and means for browsing by walking. According to the headnotes of the decision, certain appeals against denial orders are admissible. These appeals must meet the requirements in Rules 220.2 and 220.3 of the Rules of Procedure. The order in question constitutes a case management order. As a result, it can only be appealed if a panel issued it.